

Court No. - 40

Case :- WRIT - C No. - 15203 of 2018

Petitioner :- Kurri Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ram Chandra Tripathi

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner.

At the very outset learned counsel for the petitioner submits that he is prepared to make the deposits and since he is a farmer and running a tubewell some breathing time should be granted to him keeping in view the fact that the petitioner is unable to muster finances immediately.

Even though the provisions of Clause 6.14 of the U.P. Electricity Supply Code, 2005 provide for extending the benefit of installments by the Executive Engineer yet keeping in view the petty amount for which the petitioner has approached this Court we direct that in case the petitioner deposits a sum of Rs.10,000/- within one month from today the balance of the amount shall be paid within six months thereafter.

Accordingly the writ petition stands disposed of with the aforesaid directions in the event of the deposit as directed hereinabove is made and no further default is committed then the coercive steps against the petitioner shall remain stayed. In the event of any default it shall be open to the Electricity Department to realize the same in accordance with law,

Order Date :- 26.4.2018

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